



File No.: EXP202300562

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on December 27, 2022. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), regarding the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible violation of the provisions of Article 5.1.c) of the GDPR.

The reasons supporting the complaint are as follows:

The complainant states that she is the landlord of a property that has a patio and that the respondent is a neighbor of the adjoining property, having installed a surveillance camera aimed at said patio, without having authorization for it.

She provides an image of the location of the camera, taken from the affected patio by the orientation of the camera.

The documents submitted are:

- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not received by the responsible party; the forwarding was reiterated on February 13, 2022, by certified postal mail, and was again returned marked "absent."

THIRD: On March 27, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On July 5, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

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FIFTH: After notifying the aforementioned initiation agreement in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the respondent submitted a written statement in which, in summary, stated that:

"1 The complaint made is completely false.

2 My address is ***ADDRESS.1.

3 I have not received any prior communication to this and I can prove that I have not been absent from my home since January 2023.

4 The photograph provided by the complainant was taken from my property. The camera recorded my property, which has been repeatedly invaded by the complainant and by persons sent by the complainant, as can be verified by the complaints filed with the Civil Guard. We also reported the breaking of the grate installed on the window and the breaking of the camera by a person sent by the complainant. (Complaint attached)

5 Under no circumstances could that camera capture images of the complainant in the premises she has rented, which is below our kitchen, and which is also owned by my spouse C.C.C.

6 Due to the ongoing trespassing of our property through a window that connects the premises with the rest of the house, the illegal installation on our property of the extractors that can be seen in the photographs, the fire started in said premises (fry shop) that spread to our home, and the lack of payment for years of rent for said premises, we have initiated the eviction procedure of which I attach a copy.

7 Therefore, it is absolutely false (as the complainant claims) that I have no right or ownership over the area that was being recorded. And it is also absolutely false when she states that she goes up to the roof of the premises (patio) to clean or repair. The only access is the window that connects the premises with my home, three meters high, and she physically can never enter through there. If she has ordered an immigrant employee to enter, as I state in the complaint filed with the Civil Guard (copy attached).

8 The photo sent was taken from my property, entering through the neighbor's garden who allowed her entry.

9 We have accredited ownership to the Civil Guard and initiated the eviction lawsuit for the premises, and the Civil Guard has recommended to the complainant that they not invade our property again until the Court resolves the lawsuits filed on this matter.

10 Finally, all the data provided in the complaint is FALSE.

11 I attach photos, complaints, and the lawsuit. And I am at your disposal to clarify any doubts about this FALSE COMPLAINT."

SIXTH: On August 23, 2023, a resolution proposal was made, proposing:

"That the Director of the Spanish Agency for Data Protection proceed to archive the actions initiated against B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, as such infringement has not been demonstrated during the instruction of this procedure."

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Notified of the proposal on 25/08/2023, as recorded in the file, it has not been confirmed that any allegations have been presented against it.

In view of all that has transpired, the Spanish Agency for Data Protection considers the following proven facts in this procedure,

PROVEN FACTS

FIRST: It is evidenced, according to the documentation submitted to the file, that the respondent had installed on the facade of their home, at a window, a camera directed towards a courtyard to which their own windows overlook, which in turn constitutes the roof of a premises of which the respondent claims to be the landlord and the complainant claims to be the tenant.

SECOND: It is recorded, according to the statement of the respondent in a complaint filed with the Civil Guard of ***LOCALITY.1, that said camera recorded "their garden and part of their property." In this act, they report the breakage of the camera.

THIRD: It is evidenced, according to a photograph provided by the respondent during the allegations phase, that the camera is no longer installed.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish

Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In response to the allegations presented by the respondent, the following should be noted:

- The respondent alleges that the camera recorded their property, which has been repeatedly invaded by the complainant and by individuals sent by the complainant, and that in no case could that camera capture images of the complainant in the premises they have rented, which is located below the kitchen of the respondent and is owned by their spouse.

In this regard, this Agency points out that the complaint filed by the complainant is based on the orientation of the camera towards a courtyard, which they claim to have access to, and not on the possibility that images are being recorded inside the premises of which they are a tenant.

- The respondent alleges that due to the continuous trespassing of their property through a window that connects the premises with the rest of the house, the illegal installation on their property of the extractors that can be seen in the photographs, the fire started in said premises (churros bar) that spread to their home, and the lack of payment for years of the rent of said premises, they have initiated eviction proceedings, and therefore, it is absolutely false (as claimed by the complainant) that the respondent has no rights or ownership over the area they were recording.

In this regard, this Agency states that, in the present sanctioning file, civil law issues such as those related to the ownership of the premises, the lease of the same, or non-payment of rents are not substantiated, issues that fall outside the scope of action of the AEPD.

- The respondent also alleges that it is absolutely false that the complainant goes up to the roof of the premises (courtyard) to clean or repair. The only access is the window that connects the premises with the respondent's home, three meters high, and the complainant could never physically enter through there, and that the photo sent was taken from the property of the complainant, entering through the neighbor's garden who allowed them entry.

In this regard, this Agency points out that the issue being substantiated in the present file refers exclusively to whether the images obtained by the camera installed on the facade of the respondent's home corresponded to their property in full ownership (that is, their courtyard and garden) or affected any exterior part of the premises to which the complainant could have access, since, while it is not disputed that it is their property, both parties, complainant and respondent, acknowledge that it is subject to lease.

Considering that, at this moment, the images recorded by the camera cannot be requested, as it is no longer installed, but there are photographs in the file provided by the respondent showing that, indeed, it is their own windows that overlook a kind of courtyard that constitutes, in turn, the roof of the premises, but which cannot be accessed from the premises itself, and also in the file is the complaint filed by the complainant with the Civil Guard, in which they declare that the camera recorded "their courtyard and garden," a statement that there is no reason to doubt its veracity, in application of the principle of presumption of innocence, it is concluded that it is not possible to propose a sanctioning resolution in the present file, as no infringement of data protection regulations has been demonstrated.

III

Article 5.1 c) of the GDPR states the following: Personal data shall be:

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"adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

Regarding the processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems with the aim of preserving the safety of persons and

property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only the relevant personal data that is pertinent and strictly necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it aims to achieve. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing carried out on the same.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the area of video surveillance implies that images of public roads cannot be captured, as the processing of images in public places can only be carried out by the Security Forces and Bodies with prior governmental authorization.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

That is to say, cameras and video cameras installed for security purposes may not obtain images of the public road unless it is essential for that purpose or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, particularly not affecting surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not obtain images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely transiting the area.

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The placement of cameras directed towards the private property of neighbors with the aim of intimidating them or affecting their private sphere without a justified cause is therefore not permitted. Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners or, where applicable, of the persons present in those spaces.

In this case, from the documentation provided in the file, it can be inferred that the respondent has not captured images of any space to which the complainant has access by virtue of a valid legal title.

Therefore, in accordance with the applicable legislation and having assessed all the documentation in the file, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to B.B.B., with NIF ***NIF.1

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGGD, and in accordance with the provisions of Article 123 of the LPACAP, interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party

expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation evidencing the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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